



U.S. Department
of Transportation

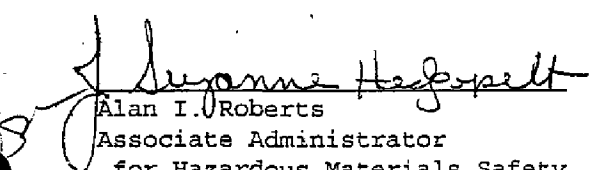
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8906 (EXTENSION)
ORIGINAL January 13, 1983

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8906 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 31 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

FMC Corporation
Philadelphia, PA

June 15, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 8906

1. FMC Corporation, Philadelphia, Pennsylvania, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a class B poison for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of used, essentially empty containers that contain residual amounts of carbofuran, packed in non-DOT specification packagings and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on FMC Corporation's application dated August 11, 1982, and supplementary information dated December 16, 1982, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Carbofuran, classed as poison B.
4. PROPER SHIPPING NAME (49 CFR 172.101). Waste Carbofuran.
5. REGULATION AFFECTED. 49 CFR 173.365.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a 500 pound test double wall BC flute corrugated fiberboard box measuring 42" X 42" X 36" with a full depth corrugated fiberboard liner of similar construction laminated to the box and a bottom corrugated fiberboard pad. The box has a built-in or fitted polyethylene bag (minimum thickness: 3 mils). The filled bag is secured with a wire tie, tape, or equivalent. The box is closed and strapped to a double faced wooden pallet. The palletized box is stretch-wrapped. The gross weight of the package may not exceed 800 pounds and the maximum weight of the carbofuran may not exceed 110 pounds. Each package must be in accordance with the details, drawings and specifications submitted in the application for this exemption.
8. SPECIAL PROVISIONS.
 - a. Packagings may be used only for one-time, one-way shipments from the plant site to an approved hazardous waste facility.
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.
10. EXPIRATION DATE. December 20, 1984.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

JAN 13 1983

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions
Branch.

Dist: FHWA.